

19STCV20502 19STCV20502

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SC&P Resources, Inc. v. Hermes Capital, Inc. et al.,

TENTATIVE RULING

Judgment Debtors' Amended Motion to Vacate the March 13, 2026 Order is DENIED. This denial is without prejudice for the Non-Debtor Spouse Me Ja Seo to file a new claim of exemption and appear for the hearing if anything has changed with respect to her financial circumstances. She did not appear at the last hearing on her claim of exemption.

Introduction

On June 12, 2019, Plaintiff SC&P Resources, Inc. filed its Complaint against Defendants Hermes Capital, Inc. and Young Jin Seo, arising out of a breach of a rental/lease contract.

On March 24, 2025, following a court trial at which Defendants appeared through counsel, Judgment was entered in favor of Plaintiff and against Defendants in the amount of \$73,954.11. No amounts have been paid on the Judgment.

On August 8, 2025, the Court granted the motion of Defendants' counsel, Park LLP, to be relieved as counsel, and Mr. Seo proceeded in propria persona. No notice of change of address was filed for Mr. Seo or for Hermes at any time thereafter.

On August 25, 2025, Plaintiff filed and served its Motion for Leave to Serve Wage Garnishment on Non-Debtor Spouse Me Ja Seo.

On March 13, 2026, the Court granted the motion (the "March 13 Order"). An Earnings Withholding Order thereafter issued to Bank of Hope, which returned an executed Employer's Return on or about May 1, 2026 confirming the named employee's employment.

On May 15, 2026, Defendants filed a Motion to Vacate the March 13 Order, relying exclusively on Code of Civil Procedure section 473(b). The non-debtor spouse separately filed a Claim of Exemption.

On June 25, 2026, the Court heard both matters. The Court denied the Motion to Vacate, finding the motion internally inconsistent and directed at a nonexistent default judgment, and finding that Defendants had failed to attach the proposed pleading required by section 473(b). The Court denied the request to vacate the March 13 Order without prejudice pending

resolution of the Claim of Exemption.

On July 7, 2026, Defendants filed the instant Amended Motion to Vacate the March 13, 2026 Order, again relying on section 473(b), and attaching a proposed opposition to the underlying motion for leave.

On July 29, 2026, Defendants lodged Supplemental Evidence in support of the Amended Motion.

On July 31, 2026, Plaintiff filed its Opposition.

Evidentiary Objection

Judgment Creditor submits an objection to the Defendants' Supplemental Evidence, filed on July 29, 2026, as untimely.

All moving and supporting papers must be filed and served at least 16 court days before the hearing. (Code Civ. Proc., § 1005(b); Cal. Rules of Court, rule 3.1300(a).) For an August 13, 2026 hearing, supporting papers were due no later than July 22, 2026. The Supplemental Evidence was served July 29, 2026 and filed thereafter. The Court did not authorize supplemental briefing or evidence.

Judgment Creditor's objection to Judgment Debtors' Supplemental Evidence lodged July 29, 2026 is SUSTAINED. The Court declines to consider the late-filed papers. (Cal. Rules of Court, rule 3.1300(d).)

Legal Standard

Code of Civil Procedure, section 473, subdivision (b) provides for two distinct types of relief—commonly differentiated as “discretionary” and “mandatory”—from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124 (*Luri*).)

The discretionary portion of section 473, subdivision (b) provides: “The court may, upon terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).)

The mandatory portion of section 473 requires the court to, “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc., § 473, subd. (b).)

Discussion

Judgment Debtor Defendants move to vacate the March 13, 2026 Order Permitting Wage Garnishment of Debtor's Spouse, on the grounds that they were never served with the underlying Motion for Leave to Serve Wage Garnishment and were therefore unable to oppose it. Defendants rely on Code of Civil Procedure section 473(b).

Judgment Debtors have now supplied a [Proposed] Opposition pursuant to Code Civ. Proc., § 473, subd. (b). The motion is also timely, having been filed within six months of the March 13 Order.

As a threshold matter, the motion does not identify whose service is at issue. The moving papers shift between two theories without reconciling them. In places Judgment Debtors contend that they – Mr. Seo and Hermes – were not served, and Mr. Seo's declaration is framed accordingly, describing an obsolete business address, junk-mail filtering, and his own asserted incapacity. Elsewhere the motion contends that the nonjudgment debtor spouse, Carly Seo, was never properly served because she was identified by a name she does not use, and that the Court therefore lacks jurisdiction over her earnings. These are different claims, brought by different parties, and they carry different consequences. Only the first is a basis for relief under section 473(b), and only Judgment Debtors may assert it. The second argument belongs to the spouse, who has not submitted a declaration, has not appeared on this motion, and did not appear at the June 25, 2026 hearing on her own Claim of Exemption. Judgment Debtors have no standing to assert her rights. To the extent the motion rests on the asserted defect in service upon Carly Seo, it is denied on that ground. The balance of this ruling addresses service upon Judgment Debtors.

As to Mr. Seo, the declaration does not address the service that occurred. Mr. Seo's declaration is directed entirely at service to 6281 Beach Blvd., Buena Park, and to former counsel. However, the proof of service establishes that the motion was also mailed to Mr. Seo at 20560 Anza Ave., Apt. 22, Torrance – his last known residence, and the address at which he and Hermes were served with the summons and complaint. (Hoang Decl., ¶¶ 5-6, 10, Exs. B, E.) The declaration says nothing about that address. Mr. Seo does not state that he did not reside there, that he did not receive mail there, or that the mailing was returned. A filed proof of service is prima facie evidence of service as stated. It stands un rebutted. Judgment Creditor's counsel declares that nothing was returned as undeliverable.

The Buena Park address is Hermes' own address of record. It appears on Hermes' most recent Statement of Information, which also lists Mr. Seo as Chief Executive

Officer and agent for service there. (Hoang Decl., ¶ 7, Ex. C) Reliance on it was proper. Defendants have not otherwise identified any excusable neglect, mistake, inadvertence, or surprise. The moving papers are directed almost entirely at Judgment Creditor's asserted misconduct, rather than at any error of Defendants' own. Section 473(b) is not addressed to the opposing party's conduct. It excuses the moving party's mistake, inadvertence, surprise, or excusable neglect, and requires that the moving party identify what that error was and why it was excusable. Defendants have not done so. Absent such a showing, there is nothing for the Court to excuse.

Mr. Seo declares that he was incapacitated by Major Depressive Disorder, Panic Disorder, and acute psychological distress, and that a language barrier prevented him from understanding the notices he received. (Seo Decl., ¶¶ 6-9.) The Court takes claims of inability to comprehend notices and incapacity seriously. However, no information about what efforts were undertaken to consult with someone about the meaning of the notices is in the declaration. Likewise, no medical records, no provider declaration, and no timeline tying the described conditions to the opposition period accompany the declaration. Further, there is no discussion in the moving papers as to how these claims regarding his medical condition caused any inexcusable neglect, mistake, or inadvertence.

Conclusion

Judgment Debtors' Amended Motion to Vacate the March 13, 2026 Order is DENIED. This denial is without prejudice for the Non-Debtor Spouse Me Ja Seo to file a new claim of exemption and appear for the hearing if anything has changed with respect to her financial circumstances. She did not appear at the last hearing on her claim of exemption.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its